

[134] MICH. 3 CAR.

1 Croke, 71. Resolves concerning souldiers.

Memorand. That the fifth of November, at Serjeants Inne in Fleet-street, there assembled the Lord Hide, Lord Richardson, Lord Walter, Justice Doderidge, Baron Denham, Justice Hutton, Justice Jones, Justice Whitlock, Justice Harvey, Justice Crook, Justice Yelverton, and Baron Trevor, to consider of a case which was propounded, which was;

One receives presse-money to serve the King in his wars, and is in the Kings wages, and with others is delivered to a conductor, to be brought to the sea-side, and with-draweth himself and runneth away without license.

The question was, if it were felony.

And time being given before to advise concerning it, all agreed besides Croke, Yelverton and myself that it was felony.

And the sole question is, if a conductor be a captain within the 7 H. 7, cap. 1, and the 3 H. 8, cap. 5, and they said, that it is not necessary that he should be such a captain as is to lead and command them in the war, or that hath skill to instruct; but such as hath the leading of them by agreement, between the deputy lieutenants, and them, and that ought to provide for the billeting of them, and to carry them to the place of rendezvous. And one part of a captain is to conduct, although that conduxit be properly to hire a souldier, yet this name conductor, with whom it is so agreed by indenture to conduct the souldiers, is a captain, within the intent of those statutes; and if it should not be so, these statutes (which are for the defence of the realm) shall be of little force.

But it was agreed by them, that if these conductors (which are so called of late times) be hired to carry them but to one place, and there another conductor to receive them, this is not within the statute; and it ought to be such a conductor that can give license upon just cause to depart. It was said, that they used to send captains into the country, but then they were so chargeable to the country, and full of disorder, that upon complaint of the justices of peace, about 43 Eliz. this course was invented, viz. that the deputy lieutenants should provide for them that were pressed, for coats and conduct, and they sent their souldiers to a place appointed to be delivered to certain persons, whom the Queen appointed, to receive them. And it was said, that though the case as it is propounded might be cleer, yet there are many circumstances which ought to be proved and that are left to the discretion of them before that he should be tried.

It was unanimously agreed, that if one takes presse-money, and when he should be delivered over, he withdraw himself, that is not felony, although he is hired and retained to serve.

But my brother Yelverton and Croke & I were of opinion, that this new name newly invented, is not captain within these penall statutes which ought to be taken strictly, vide Plowden, 86, that penalties which concern life shall not be taken by equity, but if they be within the words of the statute, then they shall: as to kill his mistresse, is within the words, for mistresse is master.

Another reason was, that the statutes provide punishment for captains which want of their number, or which pay not their souldiers [135] within six daies after they have received their pay, upon pain of forfeiting all their goods: and the statute did not intend other captains in this point, then was in the former and latter part thereof.

But admitting that a conductor is such a one to whom the souldiers are delivered by indenture with all covenants usuall, viz. to pay to them their wages, and to convey them to their appointed place, and that he may give license to depart, yet they agreed, that it is the better and clearer way that they should be made captains, and so named in the indentures, for the King may change the captain at his pleasure, and then it should be no question.

It was agreed, that 7 H. 7, cap. 1, extends only to them who are retained and pressed to serve the King upon the sea, or upon the land beyond the sea; and the statute of 3 H. 8, cap. 5, adds only the land here: and the statute makes departure without license from the captain felony, and the statute 3 H. 8, without license from the lieutenant: and the Statute of 7 H. 7 makes the tryal to be in the county where they shall be taken before the justices of the shire, as they may try other felonies